

Stereo. H C J D A 38.
JUDGMENT SHEET

LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

Civil Revision No.768-D/2016

Chairman BISE **Versus** Rabia Khalid etc.

J U D G M E N T

Date of Hearing:	03.11.2025
Petitioner by:	Mr. Muhammad Ibrahim Khan, Advocate.
Respondents No.1 by:	Proceeded against <i>ex-parte vide</i> order dated 12.09.2023.
Respondent No.3 by:	Ch. Irfan Ali Sandhu, Advocate.

Anwaar Hussain, J. Through this civil revision under Section 115 of the Code of Civil Procedure, 1908, concurrent findings recorded by the Courts below are under challenge. Respondent No.1 (“**the respondent**”) instituted a suit for declaration seeking correction of her date of birth recorded in the matriculation certificate issued by the Board of Intermediate and Secondary Education, Bahawalpur (“**the petitioner**”), asserting that her actual date of birth was 16.10.1993 instead of 16.10.1990. The learned Trial Court decreed the suit through judgment dated 21.05.2014, and the same was upheld by the learned Additional District Judge, Rahim Yar Khan, *vide* judgment dated 05.04.2016.

2. Learned counsel for the petitioner contends that the suit was barred under Section 29 of the Punjab Boards of Intermediate and Secondary Education Act, 1976 (“**the Act, 1976**”), which ousts the jurisdiction of Civil Courts in matters relating to the acts or proceedings of a board. It is further urged that the evidence was not

appreciated in its correct perspective, and that both the Courts below misread the material evidence on record.

3. The respondent was proceeded against *ex-parte* before this Court, whereas respondents No.2 and 3 have chosen not to contest the present proceedings.

4. Arguments heard. Record perused.

5. The primary question before this Court is two-fold:

- (i) Whether a civil suit seeking correction of particulars in educational records is barred under Section 29 of the Act, 1976; and
- (ii) Whether the concurrent findings of the Courts below suffer from misreading or non-reading of evidence so as to warrant interference in revision.

6. While Section 29 of the Act, 1976, creates a bar on jurisdiction of the Civil Courts, such bar is not attracted, where the acts impugned are alleged to be *mala fide*, arbitrary, or in violation of the principles of natural justice. The bar under Section 29 of the Act, 1976 cannot be stretched to shield actions or findings that are patently perverse or unsupported by evidence. The Civil Court may, therefore, examine whether or not the foundational facts and evidence has been mis-appreciated by the subordinate Courts. At the same time, this Court is conscious that ordinarily it exercises restraint in disturbing concurrent findings of fact. However, when such findings are the result of gross misreading, non-reading, or misconstruction of evidence, interference becomes not only permissible but necessary to prevent miscarriage of justice.

7. The record reveals that the respondent appeared in the matriculation examination of 2008. While submitting her Admission Form (Exh.D2), she herself recorded her date of birth as 16.10.1990, both in words and figures, duly signed the same, and

submitted an affidavit affirming the correctness thereof. The matriculation certificate was accordingly issued. It was only thereafter that the respondent procured a fresh birth certificate from the Government of Punjab dated 30.08.2008, followed by a NADRA Form-B dated 08.09.2008, and eventually filed the suit in 2012—almost four years later.

8. The Courts below failed to examine why, at the time of the respondent's initial admission to school, no birth certificate was ever produced, and why no objection was raised for four long years after the issuance of the matriculation certificate. Equally overlooked was the fact that even the petitioner's father's CNIC was freshly issued after the matriculation examination, and the newly obtained documents were relied upon as the basis for altering the foundational academic record, i.e., the Matriculation Certificate.

9. The direction to the petitioner to alter the date of birth merely on the strength of birth certificate(s) issued almost two decades after the claimed date of birth was legally untenable. The matriculation certificate, issued on the basis of particulars supplied by the respondent herself, constitutes a contemporaneous and conclusive document. Once such particulars have been recorded and certified, the respondent cannot be permitted to turn around and seek alteration of the same through subsequent documents of doubtful probative value. This Court is of the opinion that record maintained/corrected/amended by NADRA *qua* correction of the date of birth does not bind educational boards, which maintain separate statutory functions. It is also noteworthy that Exhibit-P4, a certificate purportedly issued by Lasani Public Model School, was tendered in evidence without producing any official from the said school. No proof was brought on record to establish that the said school was registered with the petitioner. The Courts below, while relying upon such unsubstantiated material, have clearly misread and non-read the evidence. Alteration of vital particulars in

academic or official records cannot be granted lightly, and must rest upon unimpeachable evidence.

10. In the present case, the most reliable document is the respondent's own Admission Form (Exh.D2) bearing her signature and affidavit, which contemporaneously recorded her date of birth as 16.10.1990. Such an entry, being self-authenticating and voluntarily made, carries the highest evidentiary value. The subsequent attempt to disown that document, through a birth certificate obtained long thereafter, lacks credibility and undermines the sanctity of academic record keeping.

11. In view of the above discussion, this revision petition is **allowed**, the impugned decisions of the Courts below are set aside and the suit of the respondent is **dismissed**. No order as to costs.

(ANWAAR HUSSAIN)
Judge

Akram

Approved for reporting.

Judge